TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, MAY 11, 2022
6:30 PM
REVISED

REGULAR MEETING

1. **Call to order**

   Mayor Williams called the meeting to order at 6:32 PM.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

   Those in attendance was Mayor Dana Williams and Council Members: Brooks Barbaree, James Lavin, Ed Drohan, Larry Ward, David Crenshaw and Bethany Skipper-Greer. Staff in attendance was Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Clerk of Council, Deatre Denion, Fire Chief, Andrew Bateman, Sargent Brandon Runyon; Accounts Payable/Utility Manager; Katina Spaulding and Public Works Manager, Oscar Crosby.

3. **Approval of Meeting Agenda**

   Mayor Williams asked for a motion to approve the agenda. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting**:
   Minutes of April 13, 2022

   Mayor Williams asked for a motion to approve the April 13, 2022 Meeting Minutes. **Council Member Ward made the motion with a second by Council Member Crenshaw. The motion passed unanimously.**

5. **Presentations:**

   a) **Employee Appreciation Proclamation**

   Mayor Williams read a Proclamation for Clerks Week and recognized the Town's Clerk, Deatre Denion.

   b) **Firefighter Proclamation**

   Mayor Williams read a Proclamation recognizing International Firefighter's Day. Fire Chief Bateman and Gregory Socks were there to accept the proclamation.

c) **Blessing of the Fleet Festival Proclamation**

Mayor Williams read a Proclamation for the upcoming Blessing of the Fleet Festival.

d) **Finance Report/Audit Update:**

Shannon Brett, partner of HBBB, asked if Council received the monthly financial report. The Town is in four months in to 2022. Everything seems to be on track at 28%. The audit firm was on site the last week of April. They will issue their report in May to the Town. June 30 is when everything has to be filed with the State of Georgia. The auditors had question about vendors with PO Boxes. CPA staff ran a list to confirm validity of these vendors. Council Member Drohan asked after the audit, would they look at the trend lines to see about the proposed reserve is building in accordance. Ms. Brett stated it is a possibility.

6. **Public Hearing for Planning and Zoning**

a) **Map Amendment from R-1 to RDD for the following parcels:**

1. **2705 River Dr. – 30004 08009**
2. **2711 River Dr. – 30004 08008**
3. **2801 River Dr. – 30005 04040**
4. **3216 Center St. – 30004 08007**
5. **3217 Center St. – 30005 04021**

P & Z voted to deny the request

Council Member Drohan spoke a brief overview. The River Drive District was developed out of an understanding that the properties along River Drive were substantially increasing in value and as a result were becoming less and less likely to be utilized as residential properties. The understanding at the time was that the lack of continuity in zoning along River Drive along with the lack of standards relative to the future development of the significant number of undeveloped properties in that area required attention by the town Council and Planning and Zoning committee. There was significant effort put forth in order to achieve both the continuity in zoning along River Drive as well as clarifying the standards for the future development of the properties in that zone. Furthermore, there was a notable determination made when considering those properties bordering on both River Drive and Bannon Drive regarding the nature of the development of those properties. Specifically, it was determined that future development of those properties bordering on Bannon Drive would reflect the residential quality of those properties directly across the road from the newly developed River Drive district. The discussion at the time reflected a desire that differently zoned properties across a common roadway would be undesirable and that the property rights the owners could be negatively affected unless we made this clear in the ordinance. Council Member Drohan cited the height restrictions.

30. Bannon Drive lots.

Height and in

Principal Building	Two (2) stories; 24' max
Accessory Building	Two (2) stories, 24' max; Accessory building height shall not exceed height of the principal building

"Each lot with frontage along Bannon Drive shall have a front or side façade parallel to Bannon Drive. In no instance shall a façade facing Bannon Drive consist of a blank wall, but instead shall consist of windows, doors, and similar elements associated with a front façade.

The height of a building fronting on Bannon Drive shall not exceed the height of an existing principal building on lot(s) across Bannon Drive by more than one floor."

The parcels that are currently being discussed do not reflect this precedent and as a result the property owners do not have available to them the same rights and opportunities afforded their neighbors. Furthermore, the ordinance was written to specifically address future development of properties in this zoning district so that future development of those properties would reflect the common standards of the River Drive district.

{FROM THE ORDINANCE}

"It is the intent of this section to require all properties and structures within the River Drive District to comply with the River Drive District standards over time so that the district will at some point have a design and appearance consistent with the intent of the general principles set forth in this ordinance." This portion of the ordinance emphasizes the intent of the ordinance to bring about the structural, visual and functional continuity in the River Drive District over time. The 5 lots in question left a de facto "spot zoning" situation that was created by the Council at the time. By all traditional zoning standards, these situations make for future challenges that often lead to unintended negative consequences. This correction will diminish the potential for such unintended consequences in the future and help to fulfill the goal of the River Drive District ordinance as it was originally conceived.

There were concerns voiced during the review of this proposal at the planning and zoning committee regarding maintaining Thunderbolt as a "small town" and that should these parcels become businesses in the future that traffic will increase and add to the current traffic issues.

The River Drive district specifically states the following:

"**In order to foster activity and vibrancy along River Drive**, the ground floor of buildings fronting on River Drive shall incorporate a publicly-accessible, active use on the ground floor."

This portion of the ordinance emphasizes the intent of the River Drive District to recognize that River Drive, by virtue of the changes in land value, utilization options and concerns with regards to inadequate planning, will indeed likely become more highly utilized as vacant properties are developed and that, in the face of a narrowing "window of opportunity", the Council chose to move forward to establish for the town a functional model for development for River Drive.

{FROM THE ORDINANCE}

"I. Intent. River Drive is the main point of entry into Thunderbolt and serves as the front door and "main street" of Thunderbolt through the civic presence of town hall and Waterfront Park, commercial presence of restaurants and businesses, as well as the front door to the Wilmington River/Intracoastal Waterway. As such, the development along River Drive should reflect the town's unique character, including its cultural and architectural heritage."

This section emphasizes the importance of River Drive as our town center and as such the natural location for commercial development. It also emphasizes the intent of the ordinance to be certain that all the development along River Drive reflects "the town's unique character, including its cultural and architectural heritage."

{FROM THE ORDINANCE}

II. Guiding Principles.

"The following principles shall guide development and redevelopment along River Drive:

1.Public Waterfront—The waterfront and marshes are inherently tied to the culture, heritage, and economic prosperity of Thunderbolt. Despite previous decisions, visual connections and, where feasible, physical connections to the river and marsh are of the utmost importance."

At the time, this discussion revolved around the poor and inadequate considerations regarding development along River Drive that occurred many years ago resulting in the loss of visual access to the Riverfront and the marshes that historically was the domain of River Drive.

{FROM THE ORDINANCE}

"2.Town—Thunderbolt is a town—larger than a village, but smaller than a city. The scale and design of the buildings, the landscape, and hardscape shall reflect the intimate ambiance and character of Thunderbolt."

This portion of the ordinance recognizes Thunderbolt for what it is, a town, and emphasizes the importance of continuity surrounding development for the sake of securing the visual and structural connection with our history.

{FROM THE ORDINANCE}

"3.Tree Canopy—One of the most iconic images of Thunderbolt is the "tree island" in River Drive with majestic live oaks forming a canopy over River Drive. Fortunately, many other live oaks exist along River Drive as well. Whenever possible, healthy existing live oaks should be preserved and new ones planted to sustain the canopy over time."

Here again, the importance of tradition is recognized in the ordinance even as a relates to our "tree architecture", which in my estimation is unmatched in the region. Protecting and sustaining this traditional component of our town again requires continuity of regulation and application along River Drive.

{FROM THE ORDINANCE}

"4. A Place for All—As the "Main Street," River Drive should comfortably accommodate people of all ages, abilities, and mobility choices. The public realm and the adjacent development, shall provide a comfortable and inviting walking environment through appropriate design, scale, infrastructure, and landscape."

Finally, the town Council at the time recognized the importance of creating a district that valued the traditions of "a stroll downtown" alongside the realities of the predictable shifts in land use along River Drive and appreciating our mutual responsibilities allowing for safety and access for all citizens and visitors who choose to enjoy the wonders of Thunderbolt. Again, zoning continuity along River Drive is central to the achievement of this ideal as put forth in the River Drive District ordinance.

Concern #2 Traffic/Parking

It is clear in the River Drive District ordinance that specific attention was paid to issues of traffic and parking and with an appreciation that without appropriate standards of development that the Town of Thunderbolt risks becoming a hodgepodge of development that would certainly detract from the inherent character and beauty of the town.

Concerns with regards to the effect of police stops are valid but actually exists under the current situation. The continuity of development along the River Drive District enhances the ability for input from public safety to assure the safe and efficient management of traffic.

Zoning continuity is consistent with addressing these issues as the development standards inherent in the zoning provides for planful consideration of future development.

Concern #3

Prior positions of property owners regarding rezoning

As I understand it, there was concern that certain property owners among the properties currently under consideration had objected to an R-3 zoning change at some point in the distant past. I say this as no such request for a zoning change has occurred in the past eight years that I have been on Council. I am assuming, and I believe reasonably so, that this may relate to a prior request to extend the disastrous "Great Wall of Thunderbolt" beyond its current extent, a choice that I would consider fatal to the character of Thunderbolt.

The River Drive district was designed to maximize physical and visual access to the Wilmington River and the marshes for the benefit of many as opposed to the few. As such, the River Drive district has in fact enhanced the unique character of the Town of Thunderbolt for the future and the inclusion of those properties currently under discussion enhances the capacity of the town to develop in a responsible and aesthetically pleasing manner.

Concern #4

That current residential properties in the RDD would be subject to the standards of new development in the RDD.

FROM THE ORDINANCE

"At the time a new use or structure is placed on any property within the River Drive District the property owner shall bring the site and building into compliance with the standards set forth for the River Drive District. At the time a property owner plans to alter the facade of a structure **(other than normal maintenance or upkeep)** the property owner must comply with the building and architectural standards."

This clearly allows for current residence owners to paint their homes according to their liking until such point that the structure is altered as to change the usage of the property.

Council Member Ward made a motion to have discussion from the public. The motion was seconded by Council Member Drohan. The motion passed unanimously with Council Member Crenshaw recusing himself.

Beth Goette – 3006 Leonard St, stated she was afraid the rezoning would impact the residential area. Residential is what is counted in the Census. To branch out past River Drive you are encroaching on neighborhood.

Jerry Shapiro, asked if this was a rezoning for a project. It was explained it was not.

There were o further questions or comments from the public. Council Member Lavin made a motion to deny with a second from Council Member Skipper-Greer. Council Member Lavin is uncertain with properties not fronting River Dr. Town Administrator Milie stated this was an area left out. These properties provide a continuity from Victory Drive District to River Drive District. Council Member Lavin stated he understands the logic but did not agree. Council Member Skipper-Greer stated she came to the office and looked at the big map and see why it was drawn to add the selected parcels. When you look at it on the big map, it makes sense. Mayor Williams stated anything they want to do will come before Council. Clerk of Council Denion explained there are other processes for someone to go through before building or changing on these parcels, i.e. building codes.

Cynthia – 2707 River Dr – stated there is already a business on one of the parcels and it does not bother anyone around there.

Mayor Williams called for the vote. **The motion to deny did not pass with a 4 to 1 vote, Council Member Crenshaw recused himself. Council Member Ward made the motion to approve the five residences to a RDD zoning with a second from Council Member Drohan. The motion passed 4 to 1, Council Member Crenshaw recused himself.**

7. **Consent Agenda:**

   a) **Approval of Outdoor Permit for Grand Opening of Precision Firearms and Waiver**

   b) **Approval of Home Occupation Permit for Bulldog Lighting and Events at 3005 River Dr. #312**

   c) **Approval of Film Escort Agreement**

   d) **Approval of the Alee Temple June and November Parade and Waiver Applications**

   e) **Approval of Hailey Grene for Planning & Zoning Commission**

   f) **Approval of Town Festival Vendor Permit**

   g) **Approval of Service Delivery Strategy Resolution**

   Mayor Williams asked for a motion to approve the consent agenda. **Council Member Drohan made the motion with a second from Council Member Ward. The motion passed unanimously.**

8. **Discussion Agenda**

   a) **Approval of HVAC Contractor for Old Library**

   Town Administrator Milie stated there were four bids for the old library HVAC. He stated the Town has a lease stating the system maintenance is on the tenant, but the unit turned over to them was not a capable unit. The four bids were Edge, Gordan, On Time Air and JT. Low bid was On Time Air but they only want the contract if it is the bigger unit. Three contractors stated their concerns with the size of the unit. The bigger unit will increase the mildew issue. The two 5 ton units will cool the building. The recommendation is to go with Gordan, the second lowest bid. Council Member Drohan asked Utilities Manager Spaulding about working with Gordan and Edge. She explained there have been issues with Edge. Gordan seemed to be more responsive. **Council Member Ward made motion to accept Gordon as the chosen contractor with a second by Council Member Crenshaw.** Council Member Skipper-Greer asked about the warranty. Town Administrator Milie stated everyone had the same except highest bid with a 2 yrs. Council Member Crenshaw asked about once this is purchased can it then go back to tenant. Town Administrator stated the tenant is to cover the maintenance. Council Member Drohan asked for the money coming from the tenant to be ear marked for maintenance issues on the building. **The motion passed unanimously.**

   b) **Approval of Festival Open Container Activity**

   This approval is only for the Blessing of the Fleet festival, allowing open containers on the festival grounds. No glass or outside beverages are allowed. No beverage larger than 16 oz is allowed. Council Member Drohan asked if police would be on foot or car patrol. Chief Clayton stated by vehicle. Council Member

Skipper-Greer made the motion with a second by Council Member Crenshaw. The motion passed unanimously.

9. **Town Administrator Report:** Town Administrator, Bob Milie

Town Administrator Milie enthusiastically announced the roof is done! Doing it in-house cost $7500. The quotes that were received were $31,000 to $34,000. Town Attorney Barrow asked if it had rained. Town Administrator Milie stated it had and there were no leaks.

Town Administrator stated yesterday was the kick off for the Safe and Tidy. Four streets were targeted. All departments were out there. Council Member Lavin volunteered to pick up litter and asked about getting the community involved. Town Administrator Milie explained they wanted the first one to be a trial using staff, as they move though the Town, citizen's will be encouraged to help

Town Administrator Milie explained there was a stop work order on Isle of Armstrong. Someone was clearing near water's edge and this requires DNR to be involved.

Mayor Williams asked for an update on website. Town Administrator Milie stated the contract has been signed by both parties and we are moving forward.

10. **Department Report** – Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police
Fire –Fire Chief, Andrew Bateman
Public Works Department – Oscar Crosby, Public Works Manager

Sergeant Runyon was asked to update of the Blue Line Agreement. Sergeant Runyon explained installation had begun and will be in use at start of the new school year.

Town Administrator Milie gave thanks to the Fire Department for replacing a leaky toilet at the Senior Center.

Mayor Williams asked about calculating the water bill. Town Administrator Milie explained it is a conservation rate. The more water you use the more your base rate will be. It is broken down into six tiers for water and sewage.

Council Member Crenshaw asked about chlorides going up. Public Works Manager Crosby stated they actually went down.

11. **Legal Report – Town Attorney**

a) Second Reading of the Sewage Ordinance Modification

Town Attorney Barrow stated this is the second reading for a modification to our sewer ordinance since EPD requires the sewer permit holder to be responsible for monitoring. **Council Member Drohan made the motion to approve as presented with Council Member Lavin seconding the motion. The motion passed unanimously.** Council Member Drohan asked about having an open dialog with Savannah on complaints. Town Administrator Milie explained they already have a good relationship with Savannah.

b) Second Reading of the Short Term Rental Sign Requirements

Town Attorney Barrow stated this is the second reading for the short-term rental sign requirement. There are four options. a) Keep as is. b) Delete sub section b. c) Provide and either/or option with sign and alternative. d) just the alternative. **Council Member Ward made the motion to approve option C,**

provide the either/or option, it was seconded by Council Member Lavin. The motion passed unanimously with Council Members Skipper-Greer and Drohan recusing themselves.

12. **Mayor and Council –**

Mayor Williams asked for Anna Maria Thomas to provide an update on Museum and their fundraiser event. Ms. Thomas stated the event went well. She thanked members of Council and Town Administrator Milie for their help.

a) Council Meeting Structure Changes

Mayor Williams stated the way the Town runs their meetings is antiquated and asked Council Member Drohan to read the changes.

As our monthly Town Council meetings are designed for the Town Council to conduct business and review Town ongoings to include financials, projects, direction, legislation etc.… The Town Council finds that to ensure best services and to operate in a transparent environment that is more consistent with best practices as recognized nationally and by Georgia Municipal Association, the following modifications shall apply.

Be it moved that beginning on June 8th 2022 that the rules related to the structure and conduct of the monthly Thunderbolt Town Council meetings be adapted as follows:

1- Open Workshop – Town Council will begin at the same time of 6:30 p.m., but an open workshop will begin at 6:00 p.m. to ensure that any affected or interested parties may have time to clarify or understand the matters to be discussed or voted on listed on the agenda. The workshop will be the time for citizen input, questions, etc., as related to agenda items only. The chairman of the meeting will have the ability to limit speakers to no less than three minutes per speaker if time constraints arise. Concurrently, the chairman may elect to delay the start of regular session based on the needs of the workshop.
Per the open meetings act, an item not on the agenda may be added only if it arises by unforeseen happenstance during the meeting. If a non-agenda item is added within the meeting, the chairman will allow affected individuals to speak, provide input, or questions regarding only the topic at hand and each speaker will be provided two minutes maximum. Concurrently, the chairman may elect to ensure individuals on both sides of an issue are heard and then close the public comment section, meaning not every desiring individual may have the ability to speak.

2- That the second portion of the meeting will be designated as the "Council Business Meeting" which will be the opportunity for members of Council to consider and vote on those items that are on the current agenda. In accordance with the ordinances guiding this portion of the meeting, agenda items will be heard, motions may be made and seconded, discussion among members of Council in front of the public can take place and voting for the record can occur. Any Councilmember may request to the chairman to seek further input from the public during this portion of the meeting.

3- That following the Council Business Meeting will be the "Mayor and Council" portion of the meeting, wherein all members of Council will continue to retain the right to present and discuss those issues they deem of importance. This should include the option for members of Council to request input from the public. Again, in keeping with Open Meetings Laws the items that Mayor and Council desire to discuss should be provided previously to the Town Clerk to be included in the meeting agenda. This will allow for the public to ask questions and provide input in the workshop relative to item one. Again, open forum exists for the unforeseen matters that came about during the course of the meeting.

4- That following the Mayor and Council portion of the meeting, the Council may at its discretion adjourn from the open meeting into "Executive Session" for the discussion of appropriate legal and personnel discussions and the purchase, sale or lease of property.
5- Following executive session, Council will reconvene into regular session, and end the meeting if no further business.
6- The Town will ask that no more than three members of council, and the Town Administrator, if possible, stay behind for fifteen minutes to discuss any topics that were discussed at the meeting, or thoughts, needs, or recommendations they may have for the Town. This is not a requirement, but an avenue to ensure some face time with the citizens that may wish to address a new issue, or clarify a previously discussed item.

Mayor Williams asked for a motion to move into executive session. **Council Member Ward made the motion with a second by Council Member Crenshaw. The motion passed unanimously.**

13. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

    Mayor Williams asked for a motion to move into regular session. **Council Member Ward made the motion with a second by Council Member Crenshaw. The motion passed unanimously.**

    Mayor Williams asked for a motion to adjourn the meeting. **Council Member Crenshaw made the motion with a second by Council Member Ward. The motion passed unanimously.**

14. **Adjournment:**

    The meeting adjourned at 8:27 pm.

Mayor, Dana Williams

Clerk of Council, Deatre N. Denion